

City Contract # _____

PROFESSIONAL SERVICES AGREEMENT
for**Landfill Leachate Pump Maintenance**

THIS AGREEMENT is made and entered into this _____ day of _____, 2019, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Terracon Consultants, located at 1505 Old Happy Jack Road, Cheyenne, Wyoming 82001. ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibits A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed within eighteen (18) months from signature of the Agreement. All work under this Agreement will be completed by December 31, 2020.

3. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants

under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in,

denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

9. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Thirty-Six Thousand Dollars (\$36,000.00) as stated in Exhibit A.

10. MONTHLY REPORT

With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

13. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

This Agreement shall be for a period of no longer than eighteen months. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon

receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With

Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT

This Agreement consisting of six (6) pages, and Exhibit A consisting of nine (9) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)
Attest:

By: _____
Marian J. Orr, Mayor

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____



ATTACHMENT A

[Scope of Work]

Abstract

Scope of Work: Landfill Leachate Pump Maintenance.

Number of Pages

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Matt Theriault

mtheriault@cheyennecity.org

(307) 637-6279



January 4, 2019

Mr. Matt Theriault
City of Cheyenne
2101 O'Neil Avenue, Room 210
Cheyenne, Wyoming 82001

P: (307) 637-6279
E: mtheriault@cheyennecity.org

Re: Proposal for Leachate Pump Operation and Maintenance
City of Cheyenne's Happy Jack Landfill
1467 Happy Jack Road
Cheyenne, Wyoming
Terracon Proposal No. P24187043

Dear Mr. Theriault:

Terracon Consultants, Inc. (Terracon) appreciates the opportunity to submit this proposal to the City of Cheyenne (client) to perform continued operation and maintenance (O&M) on the leachate pumping system at the above-referenced site. The following sections provide an outline of the project, Terracon's scope of services, including schedule, and compensation.

Scope of Services (See Section 2.0 of Proposed Detail)	Monthly O&M of NT-3 through NT-5, quarterly maintenance of NT-5 and Semi-annual system cleaning with corresponding reporting
Schedule (See Section 2.0 of Proposed Detail)	Delivery of written reports within approximately two weeks of completed maintenance visits.
Compensation (See Section 3.0 of Proposed Detail)	Estimated annual sum of \$36,000 [which includes an out of scope budget of \$10,000 to be billed at on a time and materials basis].

1.0 PROJECT INFORMATION

1.1 Site Description

The Happy Jack Landfill site includes a leachate collection system made up of five wells, NT-1 through NT-5, with varying well casing diameters and depths, as summarized below.

Terracon Consultants, Inc. 1505 Old Happy Jack Road Cheyenne, WY 82001
P (307) 632 9224 F (307) 635 5756 terracon.com



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Well	Casing Diameter (inches)	Approximate Total Depth (feet BTOC)	Approximate Average Depth to Water (feet BTOC)	Approximate Leachate Compliance Level (feet BTOC)	Leachate Pump Installed
NT-1	6	64.46	Not Measured	Not Measured	No
NT-2	6	62.98	59-60	57.90	No
NT-3	10	58.60	55-56	54.05	Yes
NT-4	10	46.45	47-48	41.95	Yes
NT-5	16	Not Measured	1.0-2.4	1.0-2.4	Yes

Leachate collection wells NT-3 through NT-5 are equipped with a submersible leachate recovery pump, digital flow meter, pressure transducer and pump controller. The pump controllers use fluid level data from pressure transducers to activate the recovery pump when the leachate fluid level reaches approximately one foot above the landfill liner depth. Upon pump activation, NT-3 and NT-4 are pumped to a manifold that is then discharged to the evaporation pond. Upon pump activation at NT-5, leachate is pumped to an on-site evaporation pond.

As of December 2018, Terracon field personnel verified that well NT-1 and NT-2 were intact but did not contain any pump, effluent piping, or pump controller. This document will continue to reference NT-1 to allow for any future re-commissioning or O&M activities at NT-1. Additionally, confined space entry is required for quarterly O&M activities at NT-5 and the leachate manifolds for NT-1 through 4, which are reflected in the scope of services, schedule and compensation.

1.2 Purpose and Objectives

Per a request from the City of Cheyenne, Terracon has prepared this proposal with the intent of establishing guidelines and a basis for future site O&M visits, including a budget, additional services outside of the routine O&M scope with the overall purpose of maintaining and documenting a fully functioning leachate pumping system. The proposed plan of action for achieving this involves regular O&M anticipated at monthly intervals, semi-annual cleaning and maintenance, and a budget for out of scope services that may occur and summary letter reports to document the field activities performed at the site.

2.0 SCOPE OF SERVICES

2.1 Scheduled Routine Operation and Maintenance

2.1.1 Leachate Collection Wells NT-1 through NT-4

Conduct routine maintenance and reporting, anticipated at monthly intervals, at wells NT-1 through NT-4:

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Monthly

- Record the fluid level reading on the pump controller and review the controller settings (NT-3 and NT-4)
- Manually gauge the fluid level in wells NT-1 through NT-4
- Record pump run time (NT-3, NT-4 and NT-5)
- Record flow meter reading (NT-3, NT-4 and NT-5)
- Inspect effluent hoses and clear of any debris or ice, replace if damaged (NT-3 and NT-4)

Quarterly

- Record the pump setting depth and remove the pumps in each well (NT-3 and NT-4)
- Gauge the total depth of each well and calculate the standing fluid column in NT-1 through NT-4
- Visually inspect each pump, pressure transducer and the wiring connections
- Clean and test leachate pumps NT-3 and NT-4. If a test indicates that a pump has failed or cannot be repaired in the field, Terracon will contact client regarding parts, cost and schedule

Following each site visit, Terracon will submit a letter report summarizing the field activities including:

- Maintenance, inspections and cleaning conducted
- Depth readings collected
- Testing conducted
- Repairs, cleaning or additional items conducted

2.1.2 Leachate Collection Well NT-5

Leachate collection well NT-5 requires confined space entry to access the pump and transducer equipment. Additional PPE, personnel, and time will be required for servicing of this pumping system. Based on the current site conditions, Terracon recommends quarterly maintenance at NT-5 to include the following:

- Record the pump run time and the flow meter reading for NT-5 on a monthly basis
- Confined space entry and atmospheric monitoring using a 4-gas meter;
- Record the fluid level reading on the pump controller and review the controller settings
- Manually gauge the fluid level in the well
- Inspect effluent hoses and clear of any debris or ice, replace if damaged
- Record the pump setting depth and remove the pump
- Gauge the total depth of the well and calculate the standing fluid column
- Visually inspect pump, pressure transducer and the wiring connections
- Clean and test pump. If a test indicates that a pump has failed or cannot be repaired in the field, Terracon will contact client

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2.2 Semi-Annual Cleaning and Maintenance

As part of the objective of maintaining a fully functional leachate pumping system and as discussed by the City of Cheyenne and in general accordance with the manual and specifications, Terracon proposes semi-annual cleaning and maintenance events (wells NT-3 through NT-5) to coincide with regular O&M visits, including the following tasks:

- Manually gauge the fluid level in each well and compare the manually measured fluid column to the pressure transducer reading. If the difference is greater than 0.1 foot, Terracon will attempt to clean and recalibrate the transducer
- Remove each pump and clean motor electrical contacts
- Visually inspect mechanical components for debris or scale buildup and clean as needed
- Cleanout the well associated with the leachate collection piping at NT-5 utilizing a vacuum truck subcontractor

2.3 Out of Scope Services (Annual Contract)

In addition to the above referenced scheduled routine maintenance: additional maintenance, repairs and/or equipment may be recommended or required for system operation during the annual contract period, including non-routine site visits and emergency site visits. The additional out of scope services may include, but is not limited to, the following:

- Pump replacement including testing and reprogramming to verify proper working condition (City of Cheyenne to provide replacement pumps, Terracon can provide cost estimates for pumps and equipment as requested)
- Pressure transducer replacement including calibration and reprogramming (City of Cheyenne to provide replacement pumps, Terracon can provide cost estimates for pumps and equipment as requested)
- Effluent hose replacement
- Additional cleanout of wells, piping and equipment
- Winterization of system effluent hoses to limit the potential for freezing

Winterization of the system effluent hoses is recommended to assist in keeping the system operational when ambient temperatures are below freezing with a reduction in the daily maintenance required by on-site landfill personnel. Winterization is recommended to include insulating of each effluent hose from the well vault to the collection pipe and the addition of heat trace to keep the pipes from freezing. Cost of winterization is estimated to be approximately \$500 per well based on approximately 100 feet of hose with insulation and heat trace required per well and the assumption that the 120 volt power supply at each pump control unit is sufficient to provide power to the heat trace.

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2.4 Health and Safety

Terracon has a 100% commitment to the safety of all its employees. As such, and in accordance with our *Incident and Injury Free*® safety culture, Terracon will update the existing safety plan to be used by our personnel during field services. Prior to commencement of on-site activities, Terracon will hold a meeting to review health and safety needs for this specific project, including confined space entry protocol. At this time, we anticipate performing fieldwork in a USEPA Level D work uniform consisting of hard hats, safety glasses, protective gloves, and steel-toed boots. It may become necessary to upgrade this level of protection, at additional cost, while maintenance activities are being conducted, in the event that chemical constituents are encountered in vapors, soils, leachate or groundwater that may pose an increased risk for personal exposure.

2.5 Schedule

Terracon is prepared to commence work with a minimum of one-week notice. We anticipate a response time of 24 hours or less for emergency calls, depending on personnel availability. We anticipate completing routine (monthly and quarterly) and semi-annual O&M events in one day each.

Terracon's services will be performed in a manner consistent with generally accepted practices of the professional undertaken in similar studies in the same geographic area during the same period. Terracon makes no warranties, expressed or implied, regarding its services, findings, conclusions or recommendations.

Proposal for Leachate Pump Operation and Maintenance

Happy Jack Landfill ■ Cheyenne, Wyoming

January 4, 2019 ■ Terracon Proposal No. P24187043



3.0 COMPENSATION

The Scope of Services outlined in this proposal over an annual contract period will be performed on a time and material basis in general accordance the attached Fee Schedule. Estimated costs are as follows:

Task	Unit Rate	Estimated Quantity	Total Estimated Annual Fees
Task 1 - Routine Monthly Maintenance as discussed above, Wells NT-1 through NT-5	\$1,300 per event	12	\$15,600
Task 2 - Routine Quarterly Maintenance, Well NT-5	\$900 per event	4	\$3,600
Task 3 - Semi-Annual Cleaning and Maintenance	\$3,400 per event	2	\$6,800
Subtotal for Scheduled Maintenance			\$26,000
Task 4 – Out of Scope	Time and Materials	As Needed	\$10,000
Estimated Total			\$36,000

If, as a result of these services, additional work is required outside the scope of this proposal, you will be contacted, and upon request, proposed costs for additional work will be provided. Client authorization will be obtained prior to commencement of any additional work outside the scope of this proposal.

This proposal and cost estimate was prepared based on the following assumptions:

- The fees associated with Task 2 - Quarterly Maintenance for well NT-5 will be in addition to Task 1 and assumes the work will be completed during a single trip to the site. The additional fees cover the additional personnel and equipment required for the confined space entry required for well NT-5.
- The fees associated with Task 3 – Semi-Annual Cleaning and Maintenance will be in addition to Tasks 1 and 2, and assumes the work will be completed during a single trip to the site. The additional fees cover the additional time and subcontractors for vacuum truck services.
- Client will provide to Terracon, prior to mobilization, legal right of entry to the site (and other areas if required) to conduct the scope of services.
- Client will notify Terracon, prior to mobilization, of any restrictions, special site access requirements, or known potentially hazardous conditions at the site (e.g., hazardous

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materials or processes, specialized protective equipment requirements, unsound structural conditions, etc.)

- Replacement materials and equipment to be provided by the Client or billed on a time and materials basis
- Terracon will provide lock-out/tag-out (LOTO) of the NT-3 through NT-5 electrical equipment.
- Terracon will not be responsible for repairing or replacing equipment if it is damaged as part of this work scope, with the equipment to be replaced by the City of Cheyenne.
- Work can be performed during normal business hours (Monday through Friday, 7:00 am to 7:00 pm).
- Traffic control services are not required.
- The site is readily accessible by truck.
- Confined space entry is required for access to well NT-5 but is not required for access to wells NT-1 through NT-4. Additional procedures and equipment are required for confined space entry, including but not limited to the following: atmospheric monitoring utilizing a 4-gas meter; additional PPE including a full body safety harness and retrieval lifeline; and a second, stand-by, person
- Cleanout of the vacuum truck during periodic maintenance will be conducted at the landfill and will not require additional sampling or disposal costs.

If any of these assumptions or conditions are not accurate or change during the project, the stated fee is subject to change. Please contact us immediately if you are aware of any inaccuracies in these assumptions and conditions, so we may revise the proposal or fee.

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4.0 GENERAL COMMENTS

This proposal is valid for 60 days from the date of this proposal. If this proposal meets with your approval, please provide Terracon with a contract for review. We appreciate the opportunity to provide this proposal and look forward to working with you on this project. If you have any questions or comments regarding this proposal, please contact John Skogman at 970-658-4392 or John.Skogman@terracon.com.

Sincerely,

Terracon

A handwritten signature in blue ink, appearing to read "John Skogman".

John Skogman, P.E.

Senior Environmental Engineer

A handwritten signature in blue ink, appearing to read "D.A. Brown".

Derek A Brown, P.E.

Authorized Project Reviewer

Attachments: Environmental Services Fee Schedule

TERRACON CONSULTANTS, INC.

2019 ENVIRONMENTAL SERVICES FEE SCHEDULE

PROFESSIONAL SERVICES

	<u>Hourly Rate</u>
Principal	\$165.00
Project Manager	140.00
Senior Project Engineer	140.00
Senior Staff Professional	100.00
Staff Professional	90.00
Technician	85.00
Clerical	60.00
Services of Senior Principal Level/Professional Staff when dealing with high level technical and/or legal issues	166.00-217.00

FIELD EQUIPMENT RENTAL

EQUIPMENT	<u>Unit Price²</u>
Disposable Bailers	15.00/each
Hand Auger Soil Sampling Kit	55.00/day
Field Sampling Kit	25.00/day
Includes Calibration solutions/Decontamination Materials	
Water Level Indicator, 100 feet	40.00/day
Confined Space Entry Tri-pod and Harness	150.00/day
Interface Probe, 100 feet	40.00/day
Interface Probe, 200 feet	40.00/day
Tri-meter (Temp, pH, Conductivity)	31.50/day
Explosivity/O ₂ , SC, pH, D.O. Meter	42.00/day
High Range DO Meter	52.50/day
YSI 556 Meter (ph, conductivity, ORP, temp, DO)	68.00/day
YSI 556 Flow Cell	12.00/day
Horiba U-22 & Flow Cell (Multi parameter meter)	105.00/day
Generator (5KW)	100.00/day
Generator (10KW)	155.00/day
Air Compressor (30 gal vertical)	80.00/day
Air Compressor (pancake)	40.00/day
Photoionizer (PID)	94.50/day
Solinst Datalogger System (priced per transducer)	60.00/day
55-gallon drums	65.00/each
Pocket Testers (pH, ORP, Conductivity)	20.00/day

SAFETY EQUIPMENT PROCEDURES

	<u>Unit Price</u>
A. Personal Protective Equipment I	\$68.25/day
(Includes standard tyvek, hard hat, safety glasses, boots, and gloves)	
B. Personal Protective Equipment II	\$78.75/day
(Includes polycoated tyvek, hard hat, safety glasses, boots, and gloves)	
C. Supplies, additional Disposable Garments, Air Bottle Filling, Air Purifying Cartridges, etc.	cost + 15%
D. Specialized Monitoring & Respiratory Equipment	cost + 15%

SAMPLING PUMPS AND RELATED EQUIPMENT

	<u>Unit Price²</u>
Grundfos RF 2 & controller	200.00/day
5/8" Tubing	0.75/foot
5/8" Teflon Lined Tubing	2.45/foot
Bladder Pump & Controller (Max Depth 200')	275.00/day
Bladder Pump & Controller (Max Depth 300')	350.00/day
3/8" Dual Tubing	1.85/foot
3/8" Dual Tubing (Teflon Lined)	2.35/foot
Peristaltic Pump (Max depth 30 feet)	35.00/day
3/8" Tubing	0.55/foot
3/8" Teflon Lined Tubing	2.55/foot

DRILLING

	<u>Unit Price</u>
Mob/demob	130/hour
Drilling/Hollow Stem Auger 4.25" or 3.25"	150/hour
Drilling/Geoprobe or Solid Stem Auger 4"	130/hour
Air rotary or ODEX compressor	300/day plus fuel
Steam Decon and Support Truck	250/day
Trailer	50/day
Rig Charge/Truck Mounted	365/day or 225/half-day
Rig Charge/ATV	540/day or 315/half-day
Well materials	Cost + 15%

DIRECT CHARGES

Per Diem and Lodging	\$60.00/day + cost of lodging
Automobile or light Pick-up ³	\$0.70/mile
4-Wheel Drive or heavy duty Vehicle ³	\$0.70/mile
All other direct project expenses, i.e. equipment rental, laboratory services, contract drilling, commercial travel, bulk reproduction, specialized safety equipment etc.	cost + 15%
Provide on-site field laboratory facilities and test equipment	Quotation on Request

Notes:

¹Emergency Response Labor will be charged at a factor of two times the standard hourly rate.

²Weekly rates are available on request for equipment rental.

³Fuel surcharge may be added if fuel costs increase by more than 10% during project duration.

A 3% per year inflation factor will be added to all hourly rates, unit prices and direct charges on projects that extend longer than one year.

GEOTECHNICAL AND MATERIALS ENGINEERING SERVICES Fee Schedule Available on Request

Revised December 2018

Terracon



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

1/1/2020

1/17/2019

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER LOCKTON COMPANIES 444 W. 47TH STREET, SUITE 900 KANSAS CITY MO 64112-1906 (816) 960-9000	CONTACT NAME:	
	PHONE (A/C, No, Ext):	FAX (A/C, No):
	E-MAIL ADDRESS:	
	INSURER(S) AFFORDING COVERAGE	
	INSURER A: Lexington Insurance Company	
	INSURER B: Travelers Property Casualty Co of America	
INSURED 1312893 TERRACON CONSULTANTS, INC. 21505 GREENOAK WAY DULLES VA 20166	INSURER C: The Travelers Indemnity Company	
	INSURER D:	
	INSURER E:	
	INSURER F:	
	NAIC #	
	19437	

COVERAGES **CERTIFICATE NUMBER:** 15833520 **REVISION NUMBER:** XXXXXXXX

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
B	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR ☒ CONTRACTUAL LIAB ☒ XCU COVERAGE GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☒ PROJECT ☐ LOC OTHER:	Y	N	TC2J-GLSA-1118L293	1/1/2019	1/1/2020	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 1,000,000 MED EXP (Any one person) \$ 25,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000
B	AUTOMOBILE LIABILITY ☒ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☐ HIRED AUTOS ONLY ☐ NON-OWNED AUTOS ONLY	Y	N	TC2J-CAP-131J3858	1/1/2019	1/1/2020	COMBINED SINGLE LIMIT (Ea accident) \$ 2,000,000 BODILY INJURY (Per person) \$ XXXXXXXX BODILY INJURY (Per accident) \$ XXXXXXXX PROPERTY DAMAGE (Per accident) \$ XXXXXXXX
	UMBRELLA LIAB ☐ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DED ☐ RETENTION \$			NOT APPLICABLE			EACH OCCURRENCE \$ XXXXXXXX AGGREGATE \$ XXXXXXXX
B C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N N	N/A	UB-2L010337-19-51-K (AOS) UB1L5546071951R (AZ,MA,WI)	1/1/2019 1/1/2019	1/1/2020 1/1/2020	☒ PER STATUTE ☐ OTH-ER E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000
A	PROFESSIONAL LIABILITY	N	N	26030216	1/1/2019	1/1/2020	\$1,000,000 EACH CLAIM & \$1,000,000 ANNUAL AGGREGATE

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)
 RE: PROJECT #24187043 ; PROJECT NAME: HAPPY JACK LANDFILL LEACHATE PUMP O&M. CITY OF CHEYENNE IS AN ADDITIONAL INSURED AS RESPECTS GENERAL LIABILITY AND AUTO LIABILITY, AND THESE COVERAGES ARE PRIMARY AND NON-CONTRIBUTORY, AS REQUIRED BY WRITTEN CONTRACT.

CERTIFICATE HOLDER

15833520
 CITY OF CHEYENNE
 2101 O'NEIL AVENUE
 CHEYENNE WY 82001

CANCELLATION See Attachments

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Joseph M. Amello

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**BLANKET ADDITIONAL INSURED - AUTOMATIC STATUS
IF REQUIRED BY WRITTEN CONTRACT
(CONTRACTORS)**

This endorsement modifies insurance provided under the following:
COMMERCIAL GENERAL LIABILITY COVERAGE PART

1. The following is added to SECTION II - WHO IS AN INSURED:

Any person or organization that:

- a. You agree in a "written contract requiring insurance" to include as an additional insured on this Coverage Part; and
- b. Has not been added as an additional insured for the same project by attachment of an endorsement under this Coverage Part which includes such person or organization in the endorsement's schedule;

is an insured, but:

- a. Only with respect to liability for "bodily injury", "property damage" or "personal injury"; and

- b. Only as described in Paragraph (1), (2) or (3) below, whichever applies:

(1) If the "Written contract requiring insurance" specifically requires you to provide additional insured coverage to that person or organization by the use of:

- (a) The Additional Insured - Owners, Lessees or Contractors - (Form B) endorsement CG 20 10 11 85; or

- (b) Either or both of the following: the Additional Insured - Owners, Lessees or Contractors - Scheduled Person Or Organization endorsement CG 20 10 10 01, or the Additional Insured - Owners, Lessees or Contractors - Completed Operations endorsement CG 20 37 10 01;

the person or organization is an additional insured only if the injury or damage arises out of "your work" to which the "written contract requiring insurance" applies;

- (2) If the "written contract requiring insurance" specifically requires you to provide additional insured coverage to that person or organization by the use of:

- (a) The Additional Insured - Owners, Lessees or Contractors - Scheduled Person or Organization endorsement CG 20 10 07 04 or CG 20 10 04 13, the Additional Insured - Owners, Lessees or Contractors - Completed Operations endorsement CG 20 37 07 04 or CG 20 37 04 13, or both of such endorsements with either of those edition dates; or

- (b) Either or both of the following: the Additional Insured - Owners, Lessees or Contractors - Scheduled Person Or Organization endorsement CG 20 10, or the Additional Insured Owners, Lessees or Contractors - Completed Operations endorsement CG 20 37, without an edition date of such endorsement specified;

the person or organization is an additional insured only if the injury or damage is caused, in whole or in part, by acts or omissions of you or your subcontractor in the performance

- of "your work" to which the "written contract requiring insurance" applies; or
- (3) If neither Paragraph (1) nor (2) above applies:
- (a) The person or organization is an additional insured only if, and to the extent that, the injury or damage is caused by acts or omissions of you or your subcontractor in the performance of "your work" to which the "written contract requiring insurance" applies; and
 - (b) The person or organization does not qualify as an additional insured with respect to the independent acts or omissions of such person or organization.
2. The insurance provided to the additional insured by this endorsement is limited as follows:
- a. If the Limits of Insurance of this Coverage Part shown in the Declarations exceed the minimum limits of liability required by the "written contract requiring insurance", the insurance provided to the additional insured will be limited to such minimum required limits of liability. For the purposes of determining whether this limitation applies, the minimum limits of liability required by the "written contract requiring insurance" will be considered to include the minimum limits of liability of any Umbrella or Excess liability coverage required for the additional insured by that "written contract requiring insurance". This endorsement will not increase the limits of insurance described in Section III - Limits Of Insurance.
 - b. The insurance provided to the additional insured does not apply to "bodily injury", "property damage" or "personal injury" arising out of the rendering of, or failure to render, any professional architectural, engineering or surveying services, including:
 - (1) The preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders or change orders, or the preparing, approving, or failing to prepare or approve, drawings and specifications; and
 - (2) Supervisory, inspection, architectural or engineering activities.
 - c. The insurance provided to the additional insured does not apply to "bodily injury" or "property damage" caused by "your work" and included in the "products-completed operations hazard" unless the "written contract requiring insurance" specifically requires you to provide such coverage for that additional insured during the policy period.
3. The insurance provided to the additional insured by this endorsement is excess over any valid and collectible other insurance, whether primary, excess, contingent or on any other basis, that is available to the additional insured. However, if the "written contract requiring insurance" specifically requires that this insurance apply on a primary basis or a primary and non-contributory basis, this insurance is primary to other insurance available to the additional insured under which that person or organization qualifies as a named insured, and we will not share with that other insurance. But the insurance provided to the additional insured by this endorsement still is excess over any valid and collectible other insurance, whether primary, excess, contingent or on any other basis, that is available to the additional insured when that person or organization is an additional insured, or is any other insured that does not qualify as a named insured, under such other insurance.
4. As a condition of coverage provided to the additional insured by this endorsement:
- a. The additional insured must give us written notice as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, such notice should include:
 - (1) How, when and where the "occurrence" or offense took place;
 - (2) The names and addresses of any injured persons and witnesses; and
 - (3) The nature and location of any injury or damage arising out of the "occurrence" or

offense.

- b. If a claim is made or "suit" is brought against the additional insured, the additional insured must:

- (1) Immediately record the specifics of the claim or "suit" and the date received; and
- (2) Notify us as soon as practicable.

The additional insured must see to it that we receive written notice of the claim or "suit" as soon as practicable.

- c. The additional insured must immediately send us copies of all legal papers received in connection with the claim or "suit", cooperate with us in the investigation or settlement of the claim or defense against the "suit", and otherwise comply with all policy conditions.
- d. The additional insured must tender the defense and indemnity of any claim or "suit" to any provider of other insurance which would cover the additional insured for a loss we cover under this endorsement. However, this condition does not affect whether the insurance provided to the additional insured by this endorsement is primary to other insurance available to the additional insured which covers that person or organization as a named insured as described in Paragraph 3. above.

- 5. The following is added to the **DEFINITIONS** Section:

"Written contract requiring insurance" means that part of any written contract or agreement under which you are required to include a person or organization as an additional insured on this Coverage Part, provided that the "bodily injury" and "property damage" occurs, and the "personal in-jury" is caused by an offense committed, during the policy period and:

- a. After the signing and execution of the contract or agreement by you; and
- b. While that part of the contract or agreement is in effect.

CG D6 04 08 13

POLICY NUMBER: TC2J-CAP-131J3858

COMMERCIAL AUTO
ISSUE DATE: 01/01/2018

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**DESIGNATED INSURED FOR COVERED AUTOS LIABILITY
COVERAGE - PRIMARY AND NON-CONTRIBUTORY WITH
OTHER INSURANCE - CONTRACTORS**

This endorsement modifies insurance provided by the following:
BUSINESS AUTO COVERAGE FORM

SCHEDULE OF ADDITIONAL INSURED PERSONS OR ORGANIZATIONS

WHERE REQUIRED BY WRITTEN CONTRACT.

PROVISIONS

1. The following is added to Paragraph c. in A. 1., Who Is An Insured, of SECTION II- COVERED AUTOS LIABILITY COVERAGE:

This includes any person or organization designated in the Schedule Of Additional Insured Persons Or Organizations who you are required under a written contract or agreement, that is signed by you before the "bodily injury" or "property damage" occurs and that is in effect during the policy period, to name as an additional insured for Covered Autos Liability Coverage, but only for damages to which this insurance applies and only to the extent of that designated person's or organization's liability for the conduct of another "insured".

2. The following is added to Paragraph 5., Other Insurance, in B., General Conditions , of SECTION IV - BUSINESS AUTO CONDITIONS:

Regardless of the provisions of paragraph a. and paragraph d. of this part 5. **Other Insurance** , this insurance is primary to and non-contributory with applicable other insurance under which the person or organization designated in the Schedule of Additional Insured Persons Or Organizations is a named insured when a written contract or agreement with you, that is signed by you before the "bodily injury" or "property damage" occurs and that is in effect during the policy period, requires this insurance to be primary and non-contributory.

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